



Tataskweyak Cree Nation

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November 19, 2025

The Hon. Joanne Thompson

Minister of Fisheries & Oceans Canada

Via email

Dear Minister Thompson:

Re: Request for Urgent Action to Protect Sturgeon

As Chief of Tataskweyak Cree Nation (TCN), I write on behalf of my Nation, its citizens and *namao* (sturgeon) to request Fisheries and Oceans Canada (DFO) take immediate action to protect sturgeon populations on the lower Churchill River.

For more than forty years, Canada has refused to act to save the lower Churchill River sturgeon. Canada must honour its constitutional and statutory obligations to ensure the survival of a species central to the lives, spirit and well-being of members of TCN.

Background

TCN holds inherent and constitutionally protected rights, including the right to fish, throughout our territory in Treaty 5. Our members have traditionally exercised their Treaty right to fish by fishing for sturgeon on the lower Churchill River.

For TCN, the Churchill River is not only a source of water, but a living entity deeply embedded in cultural identity, traditional practices, and community well-being.¹ The river once supported multiple thriving sturgeon populations. Elders share stories of the abundance of sturgeon all along the Churchill River – an important food source and the focus of many spiritual and cultural stories, songs, practices.

For decades, the licensing and operation of the Churchill River Diversion (CRD) project has had devastating impacts on sturgeon populations on the lower Churchill River. The CRD project

¹ Halket Environmental & AAE Tech Services Inc., “Impacts of the CRD on Lake Sturgeon in the lower Churchill River” (November 2025) at 17 [Halket & AAE Tech].

has also had severe, long-term impacts on our ability to exercise our Treaty right to fish and to maintain our culture and way of life.

As a result of declines in sturgeon populations, we placed a moratorium on sturgeon fishing in the mid-2010s. We took this step as part of our commitment to fulfilling our inherent stewardship responsibilities for our lands and waters. The moratorium has been a significant sacrifice for our community, especially our Elders. We write now to seek urgent action on the part of DFO so that we can once again exercise our constitutionally protected Treaty right to fish.

Reports on Sturgeon

As you are aware, DFO has provided funding to TCN to undertake traditional knowledge and science-based studies regarding sturgeon and sturgeon habitat on the lower Churchill River. We have also committed a significant amount of our own limited financial resources to undertake these studies to ensure we fully understand the impacts of the CRD project on our Treaty right to fish.

Late last year, TCN shared the results of these studies with DFO as part of a draft report entitled *The Effects of the Churchill River Diversion on Sturgeon in the Lower Churchill River*. We write now to provide you with the final versions of the report, entitled *the Impact of the Churchill River Diversion on Lake Sturgeon in the Lower Churchill River*, along with two other reports: *Churchill River Lake Sturgeon Movement Study* and *Churchill River Lake Sturgeon Population Assessment*.

The reports confirm that what our Elders and land users have been saying is true - the CRD's reduced flow regime has led to the collapse of sturgeon on the Churchill River.

Specifically, the reports conclude that:

- DFO has been aware of the risks to sturgeon posed by the CRD project for more than 5 decades. Reports commissioned by DFO in 1974 expressly warned that the lower water levels and reduced area of the rivers and lakes entailed the “risk of probable violations of the Federal Fisheries Act.”² Scientists further warned that as a consequence of the CRD project, the “whole ecology of the Lower Churchill will be drastically changed to some form unique to an artificial regime.”³

² Halket & AAE Tech, *supra* at 20, referencing reports commissioned by the Lake Winnipeg, Churchill and Nelson Rivers Study Board ran by Fisheries and Environment Canada. This risk was identified as being most acute during the winter freeze up with the risk of the river freezing to its bed.

³ Halket & AAE Tech, *supra* at 18.

- Manitoba's operation of the CRD has led to the collapse of sturgeon populations by (i) diverting over 90% of the river's flow for extended periods, and in turn drastically reducing available sturgeon habitat; and (ii) punctuating these low flows with abrupt and irregular surges, thereby creating a "highly unpredictable hydrological environment to which the downstream ecosystem cannot adapt."⁴
- The modification of the river's flow, when combined with the lack of fish passage at Missi Falls control structure, likely resulted in the near extirpation of sturgeon from this river system as sturgeon could no longer access suitable spawning and overwintering habitat in the river and South Indian Lake on the other side of Missi Falls.⁵
- The precipitous decline of flow and water levels means sturgeon have been struggling to survive in an artificially constrained river for close to 50 years.⁶ As a consequence, the lower Churchill River now only supports one remnant population that is susceptible to decline, confined to a small area a fraction of its historic range at the Little Churchill River confluence.⁷ This remnant population is fragile due to restricted movement from continually low flows, which in turns increases competition for food and space, reduces spawning rates, and increases the risk of disease susceptibility.⁸
- A once vibrant ecosystem, the sturgeon populations at Northern Indian Lake, Billard Lake and Fidler Lake have been extirpated and the remnant population is fragile and classified as endangered by COSEWIC.⁹
- The CRD project has never undergone an environmental assessment or section 35 consultation process to the detriment of TCN, the sturgeon, and all relations that rely on the river.¹⁰

Urgent Action is Needed

DFO holds responsibilities under the *Fisheries Act* for the regulation of works, undertakings or activities that risk harming fish and fish habitat. Canada is also obligated to honour and uphold the Crown's Treaty promises to TCN, including by ensuring we can continue to fish for sturgeon on the lower Churchill River.

⁴ Halket & AAE Tech, *supra* at ii.

⁵ AAE Tech Services Inc., "Churchill River Lake Sturgeon Movement Assessment Report" (November 2025) at 2; AAE Tech Services Inc., "Churchill River Lake Sturgeon Population Assessment Report" (November 2025) at i-ii, 2 [AAE Tech Services, Population Report]; Halket & AAE Tech, *supra* at 13.

⁶ Halket & AAE Tech, *supra* at 18.

⁷ AAE Tech Services, Population Report, *supra* at ii, 37, 44.

⁸ AAE Tech Services, Population Report, *supra* at 37.

⁹ AAE Tech Services, Population Report, *supra* at i-ii, 1, 44-46; Halket & AAE Tech, *supra* at 6-7, 24, 43.

¹⁰ Halket & AAE Tech, *supra* at 21.

DFO is aware of the serious, longstanding impacts of the CRD project on sturgeon populations. However, despite fundamentally altering the entire hydrological system of the Churchill River, extirpating sturgeon, and critically impacting our Treaty rights,¹¹ the CRD has operated without authorization from DFO since 1976.

Time is of the essence. We call on your Department to use all tools at its disposal, including measures under the *Fisheries Act*, to protect TCN's Treaty rights and ensure the restoration and protection of sturgeon populations on the lower Churchill River.

Ekosi,



Chief Doreen Spence
Tataskweyak Cree Nation

cc. Richard Rudolph, Area Supervisor, DFO

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¹¹ Missi Falls Control Structure, a part of the CRD, acts as a valve with the **ability to hold back 98% of the Churchill River's flow**, diverting this water to instead power hydroelectric generating stations on the Nelson River. Under Manitoba's *Water Power Act* license, Missi Falls must have a minimum flow significantly lower than the river's naturally occurring flows, with no upper limit.